Africa Centre of Excellence for Sustainable Power and Energy Development (ACE-SPED)

University of Nigeria, Nsukka

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Dispute Resolution and Information Sources Confidentiality Policy

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1. Purpose of the Policy

Africa Centre of Excellence for Sustainable Power and Energy Development (ACE-SPED) intends to maintain the highest order of ethical conduct, morality, decency and respect among staff and students. Hence, the essence of this document is to provide a holistic framework to address grievances and disputes within the ACE-SPED. The document also outlines measure to protect confidential sources of information that reveal abuse of power, processes or procedures.

Both staff and students should be able to carry out their daily activities at ACE-SPED without any fears or apprehension of exploitation of any sort. In line with the core principles of service delivery in the University of Nigeria, Nsukka, ACE-SPED pursues courteous, respectful and dignifying staff – student, staff – staff and student – student relationship. Effective service delivery shall be promoted without prejudice to gender, race, ethnicity, religious affiliation and, of course, vested interest arising from or in a bid to initiate or sustain any form of illicit/abusive relationship.

For the purpose of this policy, dispute may occur between students, between members of staff and between staff and students, as the case may be. Information on abuse of power and processes may be released by a whistleblower and the identity of the source treated with utmost confidentiality.

1.1 Aim

The aim of the policy is to outline dispute resolution mechanisms and measures that protect whistle blowers that reveal confidential information relating to abuse of power and or abuse of processes and procedures within the Africa Centre of Excellence for Sustainable Power and Energy Development (ACE –SPED).

1.2 Objectives

The specific objectives of the policy are:

i. To outline mechanisms of dispute resolution at the ACE-SPED

ii. To respond promptly to reports of grievances at the ACE-SPED

iii. To outline procedures to protect confidentiality of information and identity of whistle blowers

iv. To administer appropriate disciplinary measures when a violation occurred on any airing party of any dispute.

2. Definitions

Dispute resolution addresses complaints, grievances or conflicts which are violations or misapplication of ACE-SPED policies and regularly followed practices and procedures. Such violations are deemed to be contrary to the vision and mission of ACE-SPED.

The causes of dispute and grievances may be due to civil rights discrimination, victimization, intimidation and sexual harassment. Sexual harassment disputes are, specifically, handled according to the Anti-Sexual Harassment Policy of the ACE-SPED.

Whistleblowing refers to when a staff or student reveals information about wrong-doing he or she may have witnessed. The revealed information usually requires confidentiality and anonymity of the whistleblower.

3. Application and Scope

Categories of persons to whom this document applies include:

(i) ACE-SPED staff – an ACE-SPED staff is a person hired directly by ACE-SPED either on a long-term or short-term basis to perform specific tasks for and on behalf of ACE-SPED. This includes: principal officers, academic staff, post-doctoral fellows and other support staff. Such persons will usually be provided with letter of appointment specifying terms and conditions of the job.

(ii) ACE-SPED students – an ACE-SPED student is a person who, at one time or the other, applied and was offered admission to undertake any of the following programmes at the ACE-SPED:

a. Master's

b. Ph.D

c. Bench work

d. Short course

e. Skill acquisition

Persons in this category would normally be issued with a sort of admission letter prior to their commencement of their programmes at the ACE-SPED.

(iii) ACE-SPED Partners – this includes persons delegated by ACE-SPED industry/sectoral partners to undertake any activity related to ACE-SPED.

This document ceases to be in force under the following circumstances:

(i) When a staff is disengaged.

(ii) When a student has graduated. However, if the student was a victim of abuse of any sort by a staff or student of ACE-SPED during his/her studentship and insists in seeking redress, the terms of this document shall apply.

(iii) When ACE-SPED partners are not acting in co-ordination with, with respect to, for or on behalf of ACE-SPED

4. Procedures and Timelines for Dispute Resolution

a. At the informal revelation of any grievances, good faith attempt would be made within the ACE-SPED to resolve the issues, amicably, within a time frame of 14 days. Relevant supervisors and the ACE-SPED centre leadership would normally be involved in this type of dispute resolution to ensure harmonious resolution.

b. At the formal revelation of any grievances, good faith attempt would still be made within the ACE-SPED to resolve the issues, amicably, within a time frame of 14 days. Relevant supervisors and the ACE-SPED centre leadership would normally

be involved in this type of dispute resolution. Formal revelation/notification of grievances must be in writing.

c. If the attempts in (a) and or in (b) above fail to resolve the grievance, an official committee would be constituted within seven (7) days according to the policy of dispute resolution of ACE-SPED. The Dispute Resolution Committee is expected to complete their investigations, deliberations and recommendations within 30 days of its first sitting.

5. Implementation and Compliance Institutions

5.1 ACE-SPED Management

i. Shall facilitate and support the Dispute Resolution Committee in the implementation of the Dispute Resolution Policy.

ii. Establish a well-structured dispute and counselling unit to support ACE-SPED staff and students who have grievances and or have reasons to be a whistleblower.

5.2 Dispute Resolution Committee

i. Membership

The Committee shall be composed of seven (7) persons nominated from among members of the Management and staff of ACE-SPED as well as students, in cases involving students. There shall be gender parity in the composition of the Committee.

ii. Procedure

Formal revelation of any grievances shall be in writing. Full, accurate and unexaggerated details of the grievance(s) must be provided in the complaint letter with supporting evidence, if any. Anonymous complaints and whistle blowing shall be thoroughly investigated.

The chairperson of the Dispute Resolution Committee shall convene the Dispute Resolution Committee for deliberation within one week of being constituted. The committee shall submit their

report within 30 days of its first sitting. The committee must provide a conducive atmosphere for the parties in the dispute to present their sides of the story.

Review deliberations on the dispute resolution shall be made by the ACE-SPED Centre Management after studying the report submitted by the Dispute Resolution Committee and subsequently make recommendations to the Vice-Chancellor for onward transmission to the University Senate for final decision.

6. Rights of Parties to a Dispute

6.1 Rights of the Complainant

Any member of the ACE-SPED community who believes that his or her writes has been violated is urged to pursue the matter and utilize the procedures described under this Policy for redress. The complainant will not be reprimanded, retaliated against, or discriminated against in any way for initiating an inquiry or complaint in good faith. Similarly, any member of the ACE-SPED community who is privy to abuse of power and procedures is encouraged to reveal such activities.

6.2 Rights of the Respondent

A person against whom a complaint is lodged shall be presumed innocent of that charge unless and until there is a final finding of culpability by the Dispute Resolution Committee and the University Senate or a stipulated admission to the charge by that person.

6.3 False Representations

Individuals, who make reports that are later found to have been intentionally false or made maliciously without regard for truth, will be subject to disciplinary action as recommended by the Dispute Resolution Committee.

6.4 Right to Anonymity of Whistle blowers and Information Confidentiality is guaranteed by this policy document.

Any member of the ACE-SPED community who is privy to abuse of power, procedures and processes within the centre and decides to reveal such activities, with evidence, is guaranteed anonymity of identity and confidentiality of the information so provided.

Any attempt by any person in the ACE-SPED community to reveal identity of a whistleblower and or disclose information protected by the confidentiality enshrined herein shall be severely sanctioned.

7. Prevention and Sensitization

i. Preventive actions, such as ethics and relationship sensitization seminars, would be taken as a priority to avoid disputes and grievances at ACE-SPED.

ii. The Dispute Resolution and Information Sources Confidentiality Policy shall be widely publicized to all employees and students, including through training, without charge to all members of the ACE-SPED /University community. It shall be handed to all staff and students and displayed at the Centre's website

iii. All members of the Dispute Resolution Committee shall receive appropriate training on dispute resolution and how to apply this Policy and the grievance procedures as to discharge their duties in an efficient and sensitive manner. In addition, managerial trainings for the Centre leadership will include modules on dispute resolution.

8. Confidentiality of Procedure

The dispute resolution procedures, including written and oral communications related to it, shall be strictly confidential at all stages. All Committee members, employees, students and other persons who are aware of the grievance complaint, or involved in its resolution, must respect the sensitivity as well as the strict confidentiality of the matter. They must not discuss the dispute with third parties. Breach of confidentiality shall not be tolerated and

shall be sanctioned severely. All information and documentation concerning the dispute will be treated as strictly confidential as required by the Ethics of Dispute Resolution.

9. Enforcement of Fundamental Human Right in a Competent Court of Law

Without prejudice to the outcome of the dispute resolution according to the policy contained herein, a person not satisfied with the outcome of any dispute resolution reserves the right to seek redress in a competent court of law in Nigeria